



Appeal Decision

Site visit made on 28 July 2026

by K Mee BA(Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref: 6009085

Dovecot Avenue SW, Dovecot Avenue / Pilch Lane, Dovecot, Liverpool L14 7QH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant approval required under Article 3(1) and Schedule 2, Part 16, Class A of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended).
 - The appeal is made by EE UK Ltd and Hutchison 3G UK Ltd against the decision of Liverpool City Council.
 - The application Ref is 26PT/0694.
 - The development proposed is described as: an EE/H3G valmont 20m high phase 7 MK2 streetworks pole on root foundation and associated ancillary works.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Concerns have been raised regarding the accuracy of the submitted plans, particularly the position of a neighbouring tree in relation to the appeal site. However, based on my observations during the site visit, I am satisfied that the drawings provide an accurate representation of the existing context.
3. Because this is an application for prior approval, the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) (GPDO) require the local planning authority to assess the proposed development solely on the basis of its siting and appearance, taking into account any representations received. This appeal will be determined on the same basis.
4. The Council has referred to a number of development plan policies in its decision notice. However, the principle of development is established by the GPDO as amended, and the provisions of Schedule 2, Part 16, Class A do not require that regard is had to the development plan. I have had regard to the policies of the development plan and the National Planning Policy Framework (the Framework) only insofar as they are a material consideration relevant to matters of siting and appearance.

Main Issues

5. The main issues are:
 - the effect of the siting and appearance of the proposed installation on the character and appearance of the surrounding area;
 - the effect of the siting and appearance of the proposed installation on nearby trees;

- the effect of the siting and appearance of the proposed installation on the living conditions of the existing occupiers at 123 Pilch Lane (No 123);
- the effect of the siting and appearance of the proposed installation on highway safety; and
- if any harm would occur, whether this is outweighed by the need for the installation to be sited as proposed, taking into account any alternative provision.

Reasons

Character and Appearance

6. The appeal site occupies part of a wide pavement close to a signalised junction. The locality is mixed in character, comprising small-scale commercial premises serving the surrounding residential area. To the rear of the appeal site lies a large public park, separated by a low metal railing, beyond which are areas of grass, shrubs and a playground. Together with trees alongside the junction, within nearby gardens and along the Pilch Lane park boundary, these features contribute to a verdant setting on this side of the junction.
7. The immediate area contains a range of typical highway infrastructure, including street lighting, traffic signals and signage. It also accommodates two telecommunications monopoles on Dovecot Avenue, together with associated ground-based equipment cabinets finished in green. Although the proposed installation would comprise a relatively slim monopole, the number of antennas and associated dishes concentrated on the upper section of the mast would give it a noticeably bulkier appearance. When combined with its greater height, this would increase its visual prominence within the street scene.
8. The proposal would also introduce several ground-based cabinets, some of which would be markedly taller than the other nearby cabinets and the adjacent railings. Their siting alongside open railings, where planting is limited and views into the park beyond are available, would interrupt those views, diminish the sense of openness and add to the visual clutter of the area.
9. While the finished colour of the proposed cabinets has not been specified, the submitted visualisations indicate that they would be grey. Although a green finish would better assimilate with existing equipment and the park backdrop, which could be secured by condition, it would not overcome the harm arising from the cabinets' number, scale and siting.
10. Taken together, the height and bulk of the monopole along with the multiple associated cabinets would add appreciably to visual clutter and would have a harmful effect on the character and appearance of the immediate area. Consequently, I find that the proposed development would cause harm to the character and appearance of the area.
11. The Council referred to Policy STP4 of the Liverpool Local Plan 2013-2033 (January 2022) (Local Plan) in their decision notice regarding this main issue, but as this policy does not refer to character and appearance, it has not been determinative.

Nearby Trees

12. The nearby dwelling at No 123 contains a tree within the northeast corner of the rear garden which is of a similar height to the proposed monopole, with the tree canopy being around 8m from the appeal site. A row of similar height trees also lines the perimeter of the park along Pilch Lane to the west forming a pleasing aspect and enclosure. A smaller street tree sits on the opposite corner of Pilch Lane and Dovecot Avenue. These all combine to provide a verdant street scene close to the park and residential properties beyond.
13. The Council does not dispute the appellant's assertion that the installation of the proposed development would not impact any tree root protection areas or require any nearby trees to be pruned or felled. Based on the distances shown on the plans and my observations from my site visit, I see no reason to disagree.
14. However, antennas require a clear line of sight to the area they serve, and trees can disrupt coverage. The appellant accepts this constraint in its assessment of alternative sites. Given the height and proximity of nearby trees, I share the Council's concern that the development could create future pressure for pruning or removal, particularly considering future growth, thereby jeopardising their long-term retention.
15. This concern is heightened by the fact that the proposed microwave dishes would sit below the level of adjacent tree canopies. If maintenance of signal quality were to necessitate future tree works, it is likely that both the Council and private landowner would face difficulty resisting such requests. The appellant has provided no substantive evidence to address these concerns or demonstrate that future pruning or felling would not be necessary.
16. I therefore find that the proposal fails to demonstrate that the nearby trees would be adequately safeguarded, or that their long-term health, stability and survival would not be unduly compromised. Whilst direct physical harm to roots or canopy is unlikely during installation, insufficient evidence has been provided to dispel concerns that the mast's proximity to these trees could give rise to future pressure for pruning or removal in order to maintain signal quality. Such outcomes would be harmful to the trees' long-term health and retention. Moreover, given the positive contribution these trees make to the character and appearance of the area, as outlined above, their loss would result in significant visual harm.
17. Consequently, the siting and appearance of the proposal would have an unacceptable effect on nearby trees. Insofar as it is relevant, the proposal would therefore conflict with Policy GI 9 of the Local Plan which requires development to be integrated with trees, avoiding conflicts and considering their future growth.

Living Conditions

18. The existing dwelling at 123 Pilch Lane shares boundaries with the public park, with its side elevation and garden facing the appeal site. Although the proposed monopole would be visible from the side-facing windows and garden, it would be located around 10 metres from the side boundary. While comparatively tall, its relatively narrow form would allow views around and beyond it to be retained, and outlook from the other elevations of the dwelling would remain unaffected.

19. Consequently, I am satisfied that the development would not appear unacceptably dominant, nor would it result in material harm to the outlook or living conditions of neighbouring occupiers. Furthermore, the proposed cabinets would be screened by the existing solid boundary fence and would not harm the living conditions of neighbouring occupiers.
20. So far as they are material, the proposal would not conflict with Policy H7 of the Local Plan which seeks to ensure that there is no adverse impact on residential amenity. Accordingly, I conclude that the siting and appearance of the proposal would not result in harm to the living conditions of existing occupiers at No 123.

Highway Safety

21. The Council has confirmed that an approved scheme is in place to undertake junction improvements which are required to modernise the traffic signal infrastructure, improve safety for pedestrians and cyclists, and enhance traffic flow. Evidence submitted by the Council demonstrates that the appeal proposal would conflict with these planned works.
22. Consequently, if implemented, the development would prejudice the delivery of the junction upgrade, particularly given the cost and practical difficulties associated with relocating the proposed equipment. Furthermore, the appellant has not addressed this issue or demonstrated how the proposal could be accommodated alongside the approved highway improvements.
23. The objectives of the approved junction improvements align with Policies TP1, TP3, TP4, TP5 and TP6 of the Local Plan which collectively seek to improve accessibility by walking and cycling, safeguard transport infrastructure, secure environmental enhancements, and create a safe and attractive pedestrian environment. While the appeal proposal would not in itself conflict with these policies, its implementation would hinder the delivery of the approved highway scheme. In doing so, it would undermine the objectives that those policies seek to achieve.

Availability of Alternative Provision

24. The appellant has set out that the proposal is required to replace coverage currently provided from the Ash Grange site, which is to be lost following receipt of a Notice to Quit in advance of the site's demolition. The development would also support EE's contractual obligations to provide network services for the emergency services, facilitate the provision of 5G services in the area, and enable site sharing by other network operators.
25. Local Plan Policy STP4 supports new infrastructure required to deliver national priorities. Paragraph 119 of the Framework advises that advanced, high quality and reliable communications infrastructure is essential for economic growth and social wellbeing. Paragraph 120 of the same document outlines that the number of masts and sites should be kept to a minimum and, where they are required, they should be sympathetically designed. Furthermore, paragraph 122 also requires proposals to be supported by evidence, including exploring mast-sharing or using existing buildings or structures.
26. The appellant confirms that no mast-sharing opportunities are available and has assessed 16 alternative sites within the search area. These have been discounted

for reasons including inadequate pavement width, unsuitable proximity to residential properties, potential interference from existing monopoles, lower ground levels, buildings of insufficient height or unsuitable construction for rooftop installation and obstruction by mature trees, some of which appear to be protected by Tree Preservation Orders,

27. However, I find that the evidence provided does not adequately justify the rejection of sites D1, D2 and D3. While these sites are discounted due to the presence of nearby masts, no evidence has been submitted to demonstrate why similar interference concerns would not also arise from the two existing masts in the vicinity of the appeal site. Furthermore, the reasons for rejecting site D16 are insufficiently substantiated.
28. Consequently, although I have found that the proposal would not result in harm to the living conditions of the occupiers at No 123, I have found that it would cause harm to the character and appearance of the area, nearby trees and would result in harm to highway safety, based on the evidence provided. While the need for the proposed installation weighs in favour of the appeal, and notwithstanding the other appeal decisions cited by the appellant¹, I am not satisfied that less harmful alternatives have been properly explored. For these reasons, I find the siting and appearance of the proposed development to be unacceptable and is not outweighed by the need for the installation.

Other Matters

29. The appellant contends that the Council failed to undertake a balancing assessment on the social and economic benefits against the identified harm. However, the GPDO requires the local planning authority to assess the proposed development solely on the basis of its siting and appearance.
30. I acknowledge that the proposal would not have an adverse impact on traffic generation or car parking in the locality. However, this does not address nor surmount the harms I have identified above.
31. I note the appellant's assertion that the Council failed to engage positively with them, to guide development to a preferred form, at the point of the pre-application consultation. However, this criticism carries little weight in my assessment, which has been based solely on the planning merits of the proposal.

Conclusion

32. For the reasons given above, I therefore conclude that the appeal should be dismissed.

K Mee

INSPECTOR

¹ APP/L1765/W/18/3197522 and APP/N5090/W/20/3261084